



CHAPTER li.

An Act to confirm a Provisional Order under the Inclosure Acts 1845 to 1882 for the Inclosure of the Open Fields Heath and Wastes in the Parish of Sutton in the County of Northampton. A.D. 1901.
[2nd July 1901.]

WHEREAS the Board of Agriculture did in pursuance of the Inclosure Acts 1845 to 1882 issue in the year one thousand nine hundred the Provisional Order of Inclosure set forth in the schedule hereto and in a special report certified that it was expedient that the same should be confirmed by Parliament: 8 & 9 Vict.
c. 118. &c.

And whereas a Committee of the House of Commons to which the same Provisional Order was referred recommended that the same ought to be confirmed by Parliament without modification:

And whereas the said inclosure cannot be proceeded with without the previous authority of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order of Inclosure set forth in the schedule to this Act is hereby confirmed. Order in
schedule
confirmed.

2. This Act may be cited as the Inclosure (Sutton) Provisional Order Act 1901. Short title.

A.D. 1901.

S C H E D U L E.

PROVISIONAL ORDER FOR THE INCLOSURE OF
THE OPEN FIELDS HEATH AND WASTES AT SUTTON IN THE
COUNTY OF NORTHAMPTON.

WHEREAS persons interested in certain lands called or known as the Open Fields and the Heath and Wastes (all which lands are herein-after collectively referred to as "the said Commons") situate in the parish of Sutton in the county of Northampton such lands being Commons within the meaning of the Inclosure Acts 1845 to 1882 have made application to the Board of Agriculture to issue a Provisional Order for the Inclosure of the said Commons and to certify that it is expedient that such Provisional Order should be confirmed by Parliament :

And whereas it has been made to appear to the said Board that the persons making the said application represent at least one third in value of such interests in the said Commons as are proposed to be affected by the Provisional Order :

And whereas the said Board having taken the said application into consideration were satisfied that a *prima facie* case had been made out and that regard being had to the benefit of the neighbourhood as well as to private interests it was expedient to proceed further in the matter and accordingly ordered a local inquiry to be held by an officer of the Board :

And whereas the said officer having caused public notice to be given as required by the said Acts held pursuant to the said notice public meetings at the reading room in the said parish of Sutton on the 13th and 14th days of March 1900 at the respective hours of eleven in the morning and seven in the evening to hear all persons desirous of being heard on the subject-matter of the said application and any information or evidence which might be offered in relation thereto and inquired into the correctness of the statements in the said application and otherwise into the expediency of making the Provisional Order applied for and into the nature of the provisions to be inserted in such Provisional Order :

And whereas the said officer inspected the said Commons as required by the said Acts :

And whereas the said officer duly reported in writing to the said Board the result of the local inquiry and of the public meetings held by him together with all the information and other matters required by the said Acts and annexed to his report a sketch map of the said Commons :

And whereas the provisions of the said Acts have been in all other respects complied with :

And whereas the said Board have prepared and sealed a map (herein-after referred to as "the sealed map") showing the reputed boundaries of the said Commons on which map the Open Fields are coloured red and the Heath and Wastes are coloured green :

And whereas the Heath and Wastes are waste lands of the manor of Sutton and the Reverend William Hopkinson the lord of the said manor claims to be entitled as such lord to the soil of the said Heath and Wastes subject to a claim by the Most Honourable William Thomas Brownlow Marquis of Exeter as lord of the manor of Langdyke with the liberty of the hundred of Nassabergh and soke of the borough of Saint Peter otherwise Peterborough to be lord paramount of the aforesaid manor and as such entitled to an interest in the soil of the said Heath and Wastes : A.D. 1901.

And whereas after the said application for a Provisional Order had been made to the said Board the said William Hopkinson the person interested within the meaning of the said Acts in certain lands not subject to the operation of the proposed inclosure (which lands are numbered 26 66 67 and 71 on the Ordnance map of the said parish of Sutton) by application duly made in writing to the said Board submitted certain portions of such lands to the operation of the said proposed inclosure under the provisions of the said Acts :

And whereas the said Board duly gave notice by advertisement in two successive weeks of their intention to embody in their Provisional Order in the matter of the said inclosure such directions in reference to the said application of the said William Hopkinson as might be necessary to carry out the desire of the said William Hopkinson to submit his said lands to the operation of the said proposed inclosure :

And whereas one calendar month has elapsed from the publication of the last of such advertisements and no notice of dissent from such proposed directions has been given to the said Board :

Now therefore the Board of Agriculture being satisfied that regard being had to the benefit of the neighbourhood as well as to private interests it is expedient to proceed further in the matter do by virtue of the powers in this behalf given them by the Inclosure Acts 1845 to 1882 and the Board of Agriculture Act 1889 make this their Provisional Order for the inclosure of the said Commons upon the following terms and conditions (that is to say):—

1. Five acres part of the fields numbered 66 and 67 on the Ordnance map and on the sealed map in such situation as the valuer acting in the matter of the inclosure shall with the approval of the Board of Agriculture select shall be submitted to the operation of the inclosure in consideration of an allotment to be made under such inclosure and shall be allotted as a recreation ground. Recreation ground.

2. Two acres part of the field numbered 26 on the Ordnance map and on the sealed map and two acres part of the field numbered 71 on the same maps in such situations as the said valuer shall with such approval as aforesaid select shall be submitted to the operation of the inclosure in consideration of an allotment to be made under such inclosure and shall be allotted for field-gardens. Field-gardens.

3. Carriage roads bridle roads and footpaths shall be set out to the satisfaction of the Board of Agriculture as may be convenient for public use and in particular a public carriage road shall be made across the Heath from north to south to connect the village of Sutton with the existing public road to Southorpe and Stamford. Roads.

[Ch. li.] *Inclosure (Sutton) Provisional Order* [1 EDW. 7.]
Act, 1901.

A.D. 1901.

Preservation
of "Ermin
Street."

Manorial
allotment.

4. The road and banks forming the old Roman Road called Ermin Street so far as the same is within the boundaries of the said Commons shall be preserved.

5. One-sixteenth part in value of the Heath and Wastes shall be allotted under the provisions of the said Acts in lieu of the right and interest of the said William Thomas Brownlow Marquis of Exeter and the said William Hopkinson in the soil of such lands inclusive of their right and interest in all mines minerals stone and other substrata under the same and so that of the said one-sixteenth part one-seventh part in value be allotted to the said William Thomas Brownlow Marquis of Exeter as lord of the manor of Langdyke and six-seventh parts in value to the said William Hopkinson as lord of the manor of Sutton such allotments to be without prejudice to any allotments in respect of rights of pasturage or other rights over and upon the Heath and Wastes.

In witness whereof the Board of Agriculture have hereunto set
their official seal this thirteenth day of December one thousand
nine hundred.

L. S.

T. H. ELLIOTT
Secretary.

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